



**U.S. Citizenship
and Immigration
Services**

**Non-Precedent Decision of the
Administrative Appeals Office**

In Re: 36080221

Date: JAN. 23, 2025

Appeal of U.S. Immigration and Customs Enforcement Decision

ICE Form I-352, Immigration Bond

The Obligor seeks to reinstate a delivery bond. *See* Immigration and Nationality Act section 103(a)(3), 8 U.S.C. § 1103(a)(3). An obligor posts an immigration bond as security for a bonded noncitizen's compliance with bond conditions, and U.S. Immigration and Customs Enforcement (ICE) may issue a bond breach notice upon substantial violation of these conditions.

The North Platte, Nebraska, ICE Field Office declared the bond breached, concluding that the Obligor did not deliver the Bonded Noncitizen at the time and place requested in writing. On appeal, the Obligor asserts that ICE's request was invalid and that, regardless of the request's validity, she did not substantially violate the terms of the delivery bond.

The Obligor bears the burden of proof to establish substantial performance of a bond's conditions. *Matter of Allied Fid. Ins. Co.*, 19 I&N Dec. 124, 129 (BIA 1984). We review the questions in this matter de novo. *Matter of Christo's, Inc.*, 26 I&N Dec. 537, 537 n.2 (AAO 2015). Upon de novo review, we will sustain the appeal.

I. LAW

A delivery bond creates a contract between the U.S. Government and an obligor. *United States v. Minn. Tr. Co.*, 59 F.3d 87, 90 (8th Cir. 1995); *Matter of Allied Fid. Ins. Co.*, 19 I&N Dec. at 125. An obligor secures its promise to deliver a noncitizen by paying a designated amount in cash or its equivalent. 8 C.F.R. § 103.6(d). A breach occurs upon substantial violation of a bond's conditions. 8 C.F.R. § 103.6(e). Conversely, substantial performance of a bond's conditions releases an obligor from liability. 8 C.F.R. § 103.6(c)(3). Several factors inform whether a bond violation is substantial: the extent of the violation; whether it was intentional or accidental; whether it was in good faith; and whether the obligor took steps to comply with the terms of the bond. *Matter of Kubacki*, 18 I&N Dec. 43, 44 (Reg'l Comm'r 1981) (citing *Int'l Fidelity Ins. Co. v. Crosland*, 490 F. Supp. 446 (S.D.N.Y. 1980)); *see also Aguilar v. United States*, 124 Fed. Cl. 9, 16 (2015).

II. ANALYSIS

The record establishes that an Immigration Judge administratively closed the Bonded Noncitizen's removal proceedings, upon joint request, in September 2014. The record also establishes that, in December 2017, U.S. Citizenship and Immigration Services (USCIS) approved the Bonded Noncitizen's Form I-601, Application for Waiver of Grounds of Inadmissibility, and it granted the Bonded Noncitizen the status of lawful permanent resident (LPR). The record further establishes that the Executive Office for Immigration Review (EOIR) recalendared the Bonded Noncitizen's removal proceedings and, in [REDACTED] 2024, an Immigration Judge ordered the Bonded Noncitizen removed in absentia.

The North Platte, Nebraska, ICE Field Office sent the Obligor an ICE Form I-340, Notice to Obligor to Deliver Alien, dated July 31, 2024. The ICE Form I-340 requested the Obligor to deliver the Bonded Noncitizen to the North Platte, Nebraska, ICE Field Office on September 3, 2024, for the purpose of "removal," pursuant to the Immigration Judge's order. The North Platte, Nebraska, ICE Field Office then sent the Obligor an ICE Form I-323, Notice - Immigration Bond Breached. The ICE Form I-323 concludes that, because the Obligor did not deliver the Bonded Noncitizen at the time and place requested on the ICE Form I-340, the Obligor substantially violated the terms of the delivery bond, thereby breaching it.

However, the record also establishes that, in the interim, a supervisory detention and deportation officer at the North Platte, Nebraska, ICE Field Office requested in writing for the Bonded Noncitizen to appear at that location on August 29, 2024, "w/ his LPR card and any other documentation that may be of use to our ERO office to update our records." The request further states, "Until we get clarification from our bond unit nothing will happen w/ the bond and as long as there is an outstanding IJ order of removal that conflicts w/ the current status of a LPR card, our case will remain open." That supervisory detention and deportation officer then confirmed that the Bonded Noncitizen appeared as requested on August 29, 2024, and that the officer "updated what I needed for ERO." The record also establishes that ICE filed a motion on August 29, 2024, in the Bonded Noncitizen's removal proceedings, requesting to reopen the proceedings and terminate without prejudice, "based on [USCIS] having granted LPR status to the [Bonded Noncitizen in 2017]."

On appeal, the Obligor asserts that ICE's motion to reopen the Bonded Noncitizen's removal proceedings and terminate them, dated the same date on which the Bonded Noncitizen appeared at an ICE Field Office and established USCIS had granted him LPR status before the Immigration Judge's removal order, indicate that ICE "wrongly issued" it in the first place. The Obligor also asserts on appeal that she not only complied with ICE's request for her to deliver the Bonded Noncitizen, she did so five days earlier than the date requested on the ICE Form I-340, in compliance with the supervisory detention and deportation officer's separate written request. The Obligor further asserts that the supervisory detention and deportation officer's confirmation in writing that "nothing will happen w/ the bond" and that he "updated what I needed for ERO" satisfied her obligations, thus "There was and remains no breach of the Notice to Deliver Alien and consequently, the Bond Breach Notice is improper, invalid, and should be rescinded."

The Bonded Noncitizen's removal proceedings, and the Immigration Judge's orders therein, are beyond our scope of review for an appeal of a bond breach determination. Therefore, we express no opinion regarding those issues. Instead, we acknowledge the procedural history for context.

The terms of the delivery bond, executed by the Obligor and contained in the record, include, in relevant part, the obligation to "cause the [Bonded Noncitizen] to be produced or to produce himself/herself to an immigration officer or an immigration judge of the United States, as specified in the appearance notice, upon each and every written request until exclusion/deportation/removal proceedings in his/her case are finally terminated." ICE made written requests for the Obligor to deliver the Bonded Noncitizen to the same location on both August 29 and September 3, 2024, and the terms of the bond compel the Obligor to comply with "each and every written request." By failing to cause the Bonded Noncitizen to appear on September 3, the Obligor did not comply with "each and every written request," thereby violating the terms of the delivery bond.

Not every violation of an immigration bond breaches it, however. The regulations specifically contemplate that a breach occurs upon substantial violation of a bond's conditions. 8 C.F.R. § 103.6(e). Whether a violation is substantial depends on several factors, including the extent of the violation; whether it was intentional or accidental; whether it was in good faith; and whether the obligor took steps to comply with the terms of the bond. *Matter of Kubacki*, 18 I&N Dec. at 44. Here, the Obligor did not deliver the Bonded Noncitizen on September 3. However, she did so in good faith, given that, in compliance with another written request from ICE, she had delivered the Bonded Noncitizen to the same location five days earlier, whereupon a supervisory detention and deportation officer informed them that "nothing will happen w/ the bond" and that he "updated what I needed for ERO." Likewise, the Obligor not only took steps to comply with the terms of the bond, she did so on August 29, before the delivery requested for September 3.

For the reasons discussed above, the record does not establish the Obligor substantially violated the terms of the delivery bond and, thus, did not breach it. 8 C.F.R. § 103.6(e); *Matter of Kubacki*, 18 I&N Dec. at 44.

ORDER: The appeal is sustained.